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Provision of September 12, 2024

Register of provisions

No. 550 of September 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code on the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, No. 196, as amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted by Mr. XX on May 2, 2022, pursuant to Article 77 of the Regulation, alleging a violation of the rules on the protection of personal data by Top Quality Corporation S.r.l.s.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The complaint against the Company and the initiation of the investigative activity.

With the complaint submitted on May 2, 2022, and regularized on July 5, 2022, Mr. XX, through the legal office of XX, represented to this Authority that he had submitted, on April 7, 2022, a request to exercise rights pursuant to Article 15 of the Regulation, against Top Quality Corporation S.r.l.s. (hereinafter "the Company"), in order to access "all personal data concerning the individual related to the employment relationship with the company, in particular the pay slips (...)".

The complainant stated that, in response to this request, duly notified to the Company's PEC address, he received no feedback within the time limits set by Article 12, paragraph 3, of the Regulation.

Therefore, with the note dated November 14, 2022, the Authority initiated a preliminary investigation, inviting the Company to provide comments regarding the complaint and to comply with the complainant's requests.

Considering that this request, duly notified to the Company's PEC address, received no response, it was reiterated on January 16, 2023, pursuant to Article 157 of the Code.

In light of the lack of response to this last request for information, the Office delegated the Privacy Protection and Technological Fraud Unit of the Guardia di Finanza to proceed with the notification of a new request for information, also formulated pursuant to Article 157 of the Code, and the act initiating the sanctioning procedure pursuant to Article 166, paragraph 5, of the Code, in relation to the violation of Article 157 of the same Code (note of April 13, 2023).

Both acts were notified to the Company on May 31, 2023, as evidenced by the minutes of operations carried out drafted by the Unit on the same date.

During the inspection, the Company declared that:

- "Mr. XX, after a prolonged period of absence, voluntarily resigned from this Company. Following the resignation, I provided all the documentation that he requested from me, via WhatsApp messaging";
- "Specifically, on March 7, 2022, I sent the company data requested to submit the resignation. On March 9, 2022, at his request, I sent him the hiring letter and the contract. On March 16, 2022, I was asked to provide the pay slip, which I handed to him the following day at my home";

- "Regarding the lack of response to the two requests for information from the Guarantor for the protection of personal data, notified to me via PEC, at that time I had given my accountant the mandate to analyze the matter. In agreement with him, having already provided the documentation to the complainant, even prior to the complaint, we deemed it unnecessary to respond (...)".

For the above reasons, the Office proceeded to notify the Company of the act initiating the procedure for the adoption of measures pursuant to Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraph 3, and 15 of the Regulation (note of September 11, 2023).

The Company, despite being informed by the Office of the possibility of submitting defensive writings or documents in relation to the sanctioning proceedings against it, did not submit any documentation in this regard.

2. The outcome of the investigation and the procedure for the adoption of corrective measures.

The outcome of the examination of the documentation produced and the statements made by the party during the procedure, premised that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code, is as follows.

First of all, it should be noted that the Company failed to respond to the request for information made by the Authority, pursuant to Article 157 of the Code. Article 166, paragraph 2, of the Code establishes that the violation of Article 157 of the Code is subject to the administrative sanction of which art. 83, par. 5, of the Regulation.

In particular, the note from the Authority dated 16/01/2023, duly notified to the certified email address of the Company as evidenced by the delivery receipts in the records of the proceedings, indicated that the statements made were not verified within the terms because deemed "not necessary" considering the contacts already initiated with the complainant.

This argument is not sufficient to exclude the responsibility of the party.

It is important to highlight that the conduct for which proceedings are being taken arises from the complete inertia exhibited by the holder regarding two distinct communications sent by the Authority: the first, containing the invitation to the Company to comply with the request of the interested party expressed through the exercise of the rights recognized to him by the Regulation (sent via certified email on 14/11/2022); the second, containing a request for information, pursuant to art. 157 of the Code, which renewed the invitation to send to the Office, within 20 days of receipt, a response to the requests already made in the note sent on 14/11/2022 (transmitted via certified email on 13/04/2023). In this second communication, it was expressly stated that "in case of non-compliance with this request, the administrative pecuniary sanction provided for by art. 166, paragraph 5, of the Code will be applied."

The reiteration of the requests sent by the Authority and the clear indications contained therein left no doubt regarding the necessity to provide the Authority with a response concerning the facts that could only be known by the Company and, in any case, it did not heed the invitation, formally contained in the first communication, to contact the Office for any clarifications. This is even more relevant considering the involvement in the decisions, as recorded in the minutes by the party, of a professional.

It is also noted that the failure to respond to the aforementioned request for information made it necessary to request the involvement of the Privacy Unit of the Guardia di Finanza, tasked with notifying an additional request for information and collecting the necessary evidence, resulting in a significant burden on the proceedings in terms of costs and time.

Based on what emerged during the inspection, it was possible to ascertain that, in response to the request to exercise rights, the Company failed to provide the requested documentation.

Specifically, it is noted that the complainant's request exclusively concerned the right to obtain copies of the pay slips related to the employment relationship. Meanwhile, the documentation provided by the Company in the messages of 7, 9, and 16 March 2022 (which are nonetheless prior to the request under art. 15 of the Regulation dated 07/04/2022) relates to the resignation procedure and contains data related to the Company and the recently concluded employment contract.

In light of what is established by art. 12, par. 3, of the Regulation ("the data controller [must provide] the interested party with information regarding the action taken regarding a request pursuant to articles 15 to 22 without unjustified delay and, in any case, no later than one month from the receipt of the request itself"), and by art. 15 of the Regulation ("the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning him is being processed and, in such a case, to obtain access to the personal data and [certain] information"), it is noted that the Company failed to provide an adequate response to the requests made by the complainant, even after the initiation of the Authority's investigation.

3. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, of the Regulation.

For the aforementioned reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the act initiating the proceedings and are therefore unsuitable to allow for the closure of the present proceedings, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply.

For the aforementioned reasons, the complaint filed pursuant to art. 77 of the Regulation is deemed well-founded and, in exercising the corrective powers attributed to the Authority pursuant to art. 58, par. 2, of the Regulation, it is ordered:

to satisfy the requests of the interested party, providing him with the information already subject to the request dated 07/04/2022 (art. 58, par. 2, lett. c) of the Regulation);

the application of an administrative pecuniary sanction pursuant to art. 83, proportionate to the circumstances of the specific case (art. 58, par. 2, lett. i) of the Regulation).

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, paragraph 7, of the Code).

The Garante, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation, by adopting an injunction order (art. 18, law 24 November 1981 no. 689), in relation to the failure to respond to the request for information made pursuant to art. 157 of the Code and the failure to respond to the request to exercise the rights made by the complainant.

The violation, ascertained in the terms of which in

****Motivation****

It cannot be considered "minor," taking into account the nature, severity, and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- In relation to the nature, severity, and duration of the violation, the nature of the violation concerning the exercise of the rights of the data subject has been deemed relevant, as well as the circumstance that, following the initiation of the investigation by the Authority, no feedback has yet been provided;
- With reference to the negligent or intentional nature of the violation and the degree of responsibility of the data controller, the conduct of the Company has been taken into account, which, with awareness and intention, did not follow up on the communications sent by the Authority during the proceedings;
- The lack of cooperation demonstrated by the Company with the Authority during the proceedings, which resulted in a significant burden on the procedure, in terms of costs and time, as well as the inertia in taking appropriate actions to remedy the violations and mitigate their possible negative effects, to the extent that it became necessary to order, with this provision, to satisfy the requests of the data subject.

It is also considered that the economic conditions of the offender are relevant in this case, determined

based on the revenues achieved by the Company concerning the ordinary financial statements for the year 2021.

In light of the elements mentioned above and the evaluations made, it is deemed appropriate, in this case, to apply to Top Quality Corporation S.r.l.s. the administrative sanction of payment of an amount equal to €5,000.00 (five thousand).

In this context, it is also considered, taking into account the type of violations identified that concerned the exercise of the rights of the data subject, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is also considered that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE Garante****

notes the unlawfulness of the processing carried out by Top Quality Corporation S.r.l.s., represented by the legal representative pro tempore, with registered office in Torri di Quartesolo (VI), via Camisana No. 91, VAT No. 04297510242, for the violation of Articles 12, paragraph 3, and 15 of the Regulation, and Article 157 of the Code;

****ORDERS****

pursuant to Article 58, paragraph 2, letter c), of the Regulation, Top Quality Corporation S.r.l.s. to satisfy the requests of the data subject, providing the information already subject to the request dated 07/04/2022, within 30 days from the date of notification of this provision, simultaneously providing communications to the Authority;

pursuant to Article 58, paragraph 2, letter i), of the Regulation, the same Company to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****ORDERS****

therefore the same Company to pay the aforementioned sum of €5,000.00 (five thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019 the publication of this provision on the Garante's website, and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, against this provision, an appeal can be made to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

It is also ordered that the initiatives undertaken to implement the provisions of this provision be communicated and to provide adequately documented feedback pursuant to Article 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

Rome, September 12, 2024

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Scorza

****THE SECRETARY GENERAL****

Mattei